

UCPA 2023/2024 School Year Agreement
District: Brecksville-Broadview Heights
Student:

THIS AGREEMENT IS MADE by and between **UNITED CEREBRAL PALSY ASSOCIATION OF GREATER CLEVELAND, INC.**, 10011 Euclid Avenue, Cleveland, Ohio 44106, an Ohio not-for-profit corporation ("UCPA"), and **BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT** an Ohio public school district ("District"), regarding the education of District resident "Student").

WHEREAS UCPA is qualified to provide an alternative placement for the 2023 - 2024 school year.

WHEREAS the District desires to have UCPA provide such services to Student for the 2023-2024 school year.

NOW, THEREFORE, in consideration of the promises set forth herein and other good and valuable consideration, receipt of which is hereby acknowledged, UCPA and the District agree as follows:

1. **TERM:** The term of this Agreement shall be from August 20, 2023 through August 16, 2024. However, either party may terminate this Agreement upon thirty days' written notice to the other. If the District terminates services within less than thirty days' written notice, District shall pay full current month tuition to UCPA.
2. **PROGRAM:** UCPA will review and consider Student's Individualized Education Program, as written by District, in conjunction with UCPA's assessments and Student's needs as identified by UCPA, to develop and implement an individualized program which will include Specially Designed Instruction and related services ("Program"). Related services may include such services as physical therapy, occupational therapy, speech language therapy, and assistive technology.
3. **PROVIDERS:** UCPA's specially designed instruction and related services shall be delivered by some or all of the following staff, in accordance with the Student's identified needs as specified in Paragraph 2 above: Ohio licensed Intervention Specialist (IS), Physical Therapist (PT), Occupational Therapist (OTR/L), Physical Therapy Assistant (PTA), Occupational Therapy Assistant (COTA), Speech and Language Pathologist (SLP), certified Assistive Technology Professional (ATP), Therapeutic/Educational Aide.
4. **LOCATION:** Services will take place at UCPA, located at 1200 Resource Dr., Brooklyn Heights, OH 44131, unless UCPA determines that it is in Student's best interest, based on health concerns or educational needs, to deliver said services via an online platform or offsite. Additionally, in the event that national, state and/or local government officials require or recommend closure of UCPA and/or educational or therapeutic settings in the interest of public health or safety, the services set forth in the Agreement may be delivered, as practicable, virtually via an online platform.

5. **SCHEDULE:** The Program includes nine (9) months of school year programming and one (1) month of Extended School Year Services (“ESY”), as set forth below:

- a. School year programming will commence on August 28, 2023 and will conclude on May 24, 2024. Services will be provided Monday through Thursday from 9:00 AM to 2:30 PM and Friday 9:00 AM to 12:00 PM.
- b. ESY programming will be scheduled for 4 weeks during the summer of 2024. Days and times will be determined by May of 2024.
- c. Alterations to the days and times identified in 5a and 5b above may be implemented if UCPA determines that an altered schedule is necessary due to Student’s medical or educational needs.
- d. Student absences (including but not limited to Student’s illness or medical appointments) or unforeseen events that are out of UCPA’s control and make it impossible or impracticable to provide services to Student (including but not limited to acts of God or force majeure) will neither be rescheduled nor prorated.
- e. Services will not be provided on the following dates:

September 4, 2023 (Monday): Labor Day
October 13, 2023 (Friday): NEOEA Day
October 16, 2023 (Monday): Staff In-Service Day
November 22 - 24, 2023 (Wednesday – Friday): Thanksgiving Break
December 18, 2023-January 1, 2024: Winter Break (Program resumes Jan. 2nd)
January 15, 2024 (Monday): Martin Luther King Jr. Day
February 19, 2024 (Monday): Presidents’ Day
March 22, 2024 (Friday): Records Day
March 25 - 29, 2024: Spring Break (Monday - Friday Program resumes April 1st)
April 26, 2024 (Friday): Staff Inservice Day

6. **ETR/IEP/PROGRESS:** Upon timely request by a District Administrator, UCPA staff shall assist the District in evaluating Student and gathering data for use in Student’s Evaluation Team Report (“ETR”), Individualized Education Program (“IEP”), and/or quarterly IEP Progress Reports. Upon timely request by a District Administrator, UCPA shall make a relevant team member(s) available to attend (virtually or in person) and participate in IEP team meetings to draft, discuss, revise or review the IEP or ETR.

7. **ASSISTIVE TECHNOLOGY:** Throughout the term of this Agreement, the District shall provide UCPA with any and all Assistive Technology equipment identified in Student’s IEP or otherwise deemed necessary by the IEP team for Student. Assistive Technology is defined as any item, piece of equipment, or product system, whether acquired commercially off the shelf, modified, or customized, that is used to increase, maintain, or improve functional capabilities of a child with a disability. Examples include software, iPad, pencil

grips, foot stools, occluders, etc.

8. VISION SERVICES: If Student needs a Teacher of the Visually Impaired (TVI) or Certified Orientation and Mobility Specialist (COMS), the District shall provide the personnel to deliver the necessary itinerant services for the Student. UCPA shall not be held responsible to hire, compensate, or supervise a TVI or COMS for Student.
9. NURSING: Nursing services are available on the premises of 1200 Resource Dr. Brooklyn Heights, OH 44131. If Student needs more dedicated one-on-one nursing services, the District shall provide a nurse to deliver the necessary services for Student.
10. TRANSPORTATION: UCPA is not legally or financially responsible for Student's transportation to the Program, whether services are being delivered on-site or off-site. The District shall make all transportation arrangements in conjunction with Student's family.
11. BILLING: Beginning August 2023, UCPA shall submit monthly invoices to the District's Director of Special Education on or before the 15th of each month prior to service.
 - a. The invoices will be in the amount of Nine Thousand, Four Hundred and Fifty Dollars (\$9,450.00) per month for each of the nine (9) months of the 2023-2024 school year Program (August through May). The total cost of the nine (9) month Program is Eighty-Five Thousand and Fifty Dollars (\$85,050.00).
 - b. The May invoice will encompass Extended School Year in the amount of Nine Thousand, Four Hundred and Fifty Dollars (\$9,450.00).
 - c. The District shall pay each invoice in full by the last business day of each month preceding service. All invoices shall be paid within thirty (30) days after the invoice date. Any amount that is not paid within thirty (30) days after the invoice date shall be considered "late" and thereafter will bear interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate allowed by law, whichever is less. UCPA shall be entitled to recover its costs and expenses incurred in collecting any past-due amounts due hereunder, including reasonable attorneys' fees. In addition to any other remedy available, UCPA may restrict or suspend services to the District if payment in full is not made within fifteen (15) days after District's receipt of written notice that payment is late and suspension of service is pending.

Invoices will be mailed to the following address:

Cynthia Tomassetti
Director of Pupil Services
Brecksville-Broadview Heights City School District
6638 Mill Road
Brecksville, OH 44141

IN WITNESS WHEREOF, the parties have signed this Agreement the ____ day of ____ 2023.

UNITED CEREBRAL PALSY ASSOCIATION OF GREATER CLEVELAND, INC.

By: 

Its: President and CEO

DISTRICT: BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT

By: _____

Its: Superintendent/School Representative

FISCAL OFFICER'S CERTIFICATE

The undersigned, as Fiscal Officer for the District, hereby certifies that the amount required to meet the agreements, obligations, payments and estimated costs of the District under the foregoing Agreement has been lawfully appropriated, authorized, or directed for such purposes and is in the Board's treasury or in the process of collection free from any obligation or certificate now outstanding.

_____, Treasurer